

24NNCV02314 24NNCV02314

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#15 - JEFFREY C. BELLANTONI, et al. vs WI ALBERTA, LLC, et al.

MOTION FOR JUDGMENT ON THE PLEADINGS

A motion for judgment on the pleadings, like a general demurrer, challenges the sufficiency of the Plaintiff's cause of action and raises the legal issue, regardless of the existence of triable issues of fact, of whether the complaint states a cause of action. The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer. The pleadings are to be treated as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.

Austin Low

As presently pleaded, the first cause of action does not state a breach of contract claim against Low individually. The cause of action is pleaded against WI Alberta and Doe defendants, and the contract attached to the Complaint identifies WI Alberta as the seller while identifying Low only as the entity's authorized signer in a representative capacity.

The remaining causes of action fare no better. The Complaint does allege Low managed and directed WI Alberta's actions, including the wrongful acts described. But the operative cause-of-action captions and group definitions do not clearly plead the second, third, and fourth causes of action against Low in his individual capacity. On a pleading motion, the court must decide the sufficiency of the Complaint actually on file. That is, the pleadings "must allege the ultimate facts necessary to the statement of an actionable claim. It is both improper and insufficient for a Plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts." (Careau & Co. v. Security Pac. Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1390; FPI Develop., Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384.)

The Court therefore concludes the Complaint does not presently state facts with adequate clarity to maintain any of the four pleaded causes of action against Low individually.

Metro Capital Group, LLC

Metro was not named in the original charging allegations and was later substituted in for Doe 1. The original Complaint describes Does 1 through 15 as seller-related persons or entities whose true names were then unknown. Even so, the Complaint as it now stands does not identify Metro by name, role, conduct, or relationship to the transaction anywhere in the factual allegations.

That is not enough to state any of the four asserted causes of action against Metro on the face of the present pleading. The Court therefore grants the motion as to Metro on all causes of action.

Leave to Amend

The Court will grant leave to amend. In opposition, Plaintiffs specifically propose to allege Low's liability, alter ego theories, Low's personal participation in the disclosures, pest treatment, renovation, and alleged concealment, Metro's role in the transaction, and Low's alleged performance or direction of contracting work without a license. Plaintiffs' counsel further declares those proposed amendments are supported by discovery and expert analysis.

This showing is sufficient to warrant leave to amend. However, given the current trial date of August 4, 2026, leave will be limited and prompt.

Tentative Ruling

The joint motion for judgment on the pleadings by defendants Austin Low and Metro Capital Group, LLC is GRANTED with leave to amend. The motion is granted as to all four causes of action asserted against Austin Low and as to all four causes of action asserted against Metro Capital Group, LLC.

Any First Amended Complaint shall be filed and electronically or overnight served within 10 calendar days of service of notice of this order. Leave to amend is limited to the theories identified in Plaintiffs' opposition and supporting declaration, absent further order of the court.

Defendants shall respond within 10 days of service of the FAC.

The trial and FSC dates remain as set.

Court is to give notice.